

6	Serrano vs. Dana Point Marina Inn 2025-01482094	1. Motion to Strike Portions Of Complaint 2. Demurrer to Complaint Defendant Dana Harbor Inn, LLC’s demurrer to Plaintiff Angelia Serrano’s Complaint is SUSTAINED as to the First, Fourth, Fifth, Sixth, and Seventh causes of action and OVERRULED as to the Eighth cause of action. (Code Civ. Proc, §430.10, subd. (e).) Plaintiff may file a First Amended Complaint to attempt to address the deficiencies in the First, Fourth, Fifth, Sixth, and Seventh Causes of Action alleged in the Complaint. General Authority A demurrer can be used only to challenge defects that appear on the face of the pleading under attack; or from matters outside the pleading that are judicially noticeable. (Blank v. Kirwan (1985) 39 Cal.3d 311, 318; Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994.) For the purpose of testing the sufficiency of the cause of action, the demurrer admits the truth of all material facts properly pleaded (i.e., all ultimate facts alleged, but not contentions, deductions or conclusions of fact or law). (Aubry v. Tri-City Hosp. Dist. (1992) 2 Cal.4th 962, 966-967; Serrano v. Priest (1971) 5 Cal.3d 584, 591.) COA 1: Battery “A battery is any intentional, unlawful and harmful contact by one person with the person of another. [Citation.] A harmful contact, intentionally done is the essence of a battery. [Citation.] A contact is ‘unlawful’ if it is unconsented to.” (Ashcraft v. King (1991) 228 Cal.App.3d 604, 611.) Here, Plaintiff alleges that Defendants failed to appropriately inspect its hotel rooms for signs of bed bug infestation and failed to warn Plaintiff of the risk of bed bugs being present. Plaintiff alleges that Defendants’ failure was “intentional, deliberate, and
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		reckless” and resulted in Plaintiff being touched by the infestation of bed bugs. Plaintiff does not allege that Defendant intentionally exposed Plaintiff to bed bugs. Plaintiff does not allege that any Defendant or agent of any Defendant physically touched her. This is not sufficient to state a cause of action because no allegation of harmful contact by any person with Defendant. Plaintiff does not allege that any exposure to bed bugs was intended by any Defendant. Thus, Plaintiff does not sufficiently allege facts constituting the elements of battery. COA 4: Intentional Infliction of Emotional Distress The elements of a claim for intentional infliction of emotional distress are extreme and outrageous conduct by the defendant with the intent of causing, or a reckless disregard for the probability of causing emotional distress; the plaintiff’s suffering severe or extreme emotional distress; and actual and proximate causation of emotional distress by the defendant’s outrageous conduct. <i>Potter v. Firestone Tire & Rubber Co</i> (1993) 6 Cal.4th 965. “Extreme and outrageous conduct is conduct that is so extreme as to exceed all bounds of that usually tolerated in a civilized community ... and must be of a nature which is especially calculated to cause, and does cause, mental distress.” (<i>Chang v. Lederman</i> (2009) 172 Cal.App.4th 67, 86-87 [internal quotation marks and citations omitted].) Plaintiffs’ cause of action is based upon allegations that Defendants willfully permitted a bedbug infestation of their premises and failed to warn Plaintiff of the danger. This is not sufficient to establish outrageous conduct directed at Plaintiffs. There is no allegation in the Complaint, nor can it be construed from the allegations of the Complaint that any Defendant targeted Plaintiff with exposure to bed bugs. At most, the allegations of the Complaint describe negligent conduct and fails to approach the level of despicable and
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		outrageous conduct sufficient to state a cause of action for IIED. COA 5: Fraudulent Concealment "The elements of a claim for fraudulent concealment require a plaintiff to show that: '(1) the defendant . . . concealed or suppressed a material fact, (2) the defendant [was] under a duty to disclose the fact to the plaintiff, (3) the defendant . . . intentionally concealed or suppressed the fact with the intent to defraud the plaintiff, (4) the plaintiff [was] unaware of the fact and would not have acted as he did if he had known of the concealed or suppressed fact, and (5) as a result of the concealment or suppression of the fact, the plaintiff must have sustained damage.' " (Prakashpalan v. Engstrom, Lipscomb & Lack (2014) 223 Cal.App.4th 1105, 1130.) Claims of fraud by concealment must be pleaded with particularity. (Rattagan v. Uber Technologies, Inc. (2024) 17 Cal.5th 1, 43 ["California courts apply the same specificity standard to evaluate the factual underpinnings of a fraudulent concealment claim at the pleading stage, even though the focus of inquiry shifts to the unique elements of the claim."].) Plaintiff has failed to allege this cause of action with the required degree of specificity. Plaintiff fails to allege specific facts establishing that Defendant had a duty to disclose a bed bug infestation to Plaintiffs and that they intentionally concealed this fact from Plaintiffs. Furthermore, the Complaint fails to allege specific facts demonstrating Defendant had exclusive knowledge of the alleged infestation or that Defendant took steps to actively conceal the existence of the infestation. COA 6: Private Nuisance Plaintiffs' private nuisance cause of action is premised upon allegations that they were guests at Defendants' hotel. However, in order to allege a cause of action for private
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		nuisance, a plaintiff must allege either a possessory interest in the land affected or hold a nonpossessory estate adversely affected by the alleged nuisance. (See Rest. 2d Torts §821E.) A hotel guest does not have such a property right, rather, a hotel guest is treated as a licensee on the property, and this is not enough under California law, to confer standing to maintain an action for private nuisance. (See Venuto v. Owens-Corning Fiberglass Corp. (1971) 22 Cal.App.3d 116, 125 ["Although 'any interest sufficient to be dignified as a property right' will support an action based on a private nuisance, and this includes within its purview a tenancy for a term, such right does not inure in favor of a licensee, lodger or employee."]) COA 7: Public Nuisance Civ. Code § 3480 defines a public nuisance as "one which affects at the same time an entire community or neighborhood, or any considerable number of persons, although the extent of the annoyance or damage inflicted upon individuals may be unequal." For a private plaintiff to have standing to pursue a claim for public nuisance, the complaint must allege the existence of a public nuisance and also that the plaintiff has sustained a special injury distinct from the more general public harm. (Rincon Band of Luiseno Mission Indians etc. v. Flynt (2021) 70 Cal.App.5th 1059, 1102.) Here, Plaintiff fails to allege the existence of a condition that affects a considerable number of persons. The alleged bedbug infestation is localized to a private hotel room. To the extent that a public nuisance is alleged, Plaintiffs fails to differentiate their alleged injury suffered as a result of the infestation as a special injury. COA 8: Breach of Contract
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9	De La Torre vs. Tippet Moorhead & Haden 2025-01501827	1. Motion to Strike Complaint 2. Demurrer to Amended Complaint DEMURRER Defendants Tippet Moorhead & Haden, Michael Moorhead and Daniel Church's